



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

AUG 18 2000

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 10926  
(THIRD REVISION)

EXPIRATION DATE: July 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Radcal Corporation  
Monrovia, CA
2. PURPOSE AND LIMITATIONS:
  - a. This exemption authorizes the limited use of certain non-DOT specification cylinders referred herein as well chambers, which are not fitted with a safety relief device, for the transportation in commerce of the materials authorized by this exemption. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of another device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.34(d) in that the well chamber is not fitted with a pressure relief device; §§ 173.302 and 175.3 in that a non-DOT specification packaging is authorized as described herein.

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5. BASIS: This exemption is based on Radcal Corporation's application dated May 22, 2000, and additional information dated June 20, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Materials<br>Description | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|-------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Argon, compressed                                           | 2.2                          | UN1006                        | N/A              |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification, nonrefillable, welded, 6061-T6 aluminum well chamber manufactured before December 31, 1999. The well chamber is a component of a nuclear medicine instrument that is used to monitor radiation. The well chamber must conform to Radcal Corporation's Model #4060 drawings on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The well chamber is not required to be equipped with a safety relief device. The maximum service pressure is 70 psig. The minimum test pressure is 180 psig.

b. Except as authorized in paragraph 7.c.(5) of this exemption, well chambers must be shipped with foam packaging and packaged in boxes in conformance with Radcal Performance Instruction, Packaging and Shipping, PI 1027, Revision K on file with the OHMEA. Each package as prepared for shipment must be capable of passing a 3 foot drop test, as described in the May 22, 2000 application for modification, without damage or leakage of the well chamber inside.

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c. OPERATIONAL CONTROLS -

(1) Radcal must mark each well chamber with the exemption number "DOT-E 10926" prior to making the first shipment to its customers authorized by the third revision of this exemption.

(2) Radcal must provide a copy of this exemption and written notification to all persons to whom Radcal has shipped Model #4060 well chambers. The written notification must advise the persons of the DOT requirements for packaging and shipping the well chambers as specified in this exemption. Prior to the offering in transportation, Radcal must obtain and retain from each person a written certification that the person understands and accepts its responsibilities as an offeror under the terms of this exemption

(3) Radcal must provide the foam packaging, boxes and packaging instructions described in paragraph 7.b. of this exemption to each person to whom Radcal has shipped the well chambers.

(4) Each outside packaging must be marked "INSIDE CONTAINERS CONFORM WITH DOT-E 10926".

(5) After September 30, 2000 persons may only offer a well chamber in the packaging provided by Radcal that is described in paragraph 7.b. of this exemption.

8. SPECIAL PROVISIONS:

a. No new manufacture of a Radcal Model #4060 well chamber is authorized.

b. Transportation of a Radcal Model #4060 well chamber is authorized only to and from Radcal customers for the purpose of repair or calibration.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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d. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR. Offerors must comply with all applicable sections of the HMR, including, but not limited to Part 172 Subparts C (shipping papers), D (marking), G (emergency response information), and H (training).

e. Except when offered for transportation by air:

(1) Packages covered by this exemption are excepted from the labeling requirements in 49 CFR Part 172.

(2) Shipments are not subject to the placarding requirements of Subpart F of 49 CFR Part 172.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, passenger aircraft and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: CWF